

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: August 10, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Cervantes v. Chapman Coast Roof Co., Inc. 2026-01556143 Demurrer to Complaint	Defendant Chapman Coast Roof Co., Inc.'s Demurrer to the Complaint is OVERRULED. Plaintiff's 12th cause of action under Labor Code sections 226 and 1174 for failure to provide itemized wage and hour statements seeks both statutory penalties and actual damages. Plaintiff alleges his claim for actual damages includes Plaintiff not being paid wages to which Plaintiff was entitled. (Compl., ¶ 139.) Thus, Plaintiff is not only seeking penalties within their cause of action and the statute of limitations as to the actual damages for unpaid wages is three years. (See <i>Falk v. Children's Hospital Los Angeles</i> (2015) 237 Cal.App.4th 1454, 1469; <i>Castillo v. Glenair, Inc.</i> (2018) 23 Cal.App.5th 262, 287; <i>Novoa v. Charter Communications, LLC</i> (E.D. Cal. 2015) 100 F.Supp.3d 1013, 1025.) Accordingly, Defendant's demurrer is overruled.
2	Fairon v. Vassallo 2026-01552552	Defendant Brian Theiss's Motion to Strike, joined by Defendants Sarie Vassallo, Mikala Vassallo, TheissCare LLC, American Built Science, LLC, and Maiden Legacies LLC, is GRANTED with 30 days leave to amend.

Motion to strike Joinder to Motion to Strike Review Hearing re Notice of Related Cases	The Court finds the Complaint is brought in violation of the public policies supporting the long-standing California rule prohibiting a corporation from representing itself through an agent who is not an attorney. "[U]nder a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record." (<i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1145.) "Several rationales lie behind the rule. First, a corporation, as an artificial entity created by law, can only act in its affairs through its natural person agents and representatives. If the corporate agent who would likely appear on behalf of the corporation in court proceedings, e.g., an officer or director, is not an attorney, that person would be engaged in the unlicensed practice of law. [¶] Second, the rule furthers the efficient administration of justice by assuring that qualified professionals, who, as officers of the court are subject to its control and to professional rules of conduct, present the corporation's case and aid the court in resolution of the issues. Third, the rule helps maintain the distinction between the corporation and its shareholders, directors, and officers. (Id. [citations omitted].) Although generally, the rights under a contract which are not purely personal in nature may be assigned to another. (<i>Curtis v. Kellogg & Andelson</i> (1999) 73 Cal.App.4th 492, 504.) Here, Plaintiff is the sole owner of Lunarspace and purportedly assigned Lunarspace's rights under the contracts to himself. Allowing Plaintiff to do so would circumvent the rule requiring corporations to be represented through an attorney and allow any corporation, especially single member entities, to be represented by an agent who is not an attorney. This practice is expressly rejected by several federal courts and some state courts. (See <i>U.S. v. High Country Broadcasting Co., Inc.</i> (9th Cir. 1993) 3 F.3d 1244, 1245; <i>Capital Group, Inc. v. Gaston & Snow</i> (E.D. Wis. 1991) 768 F.Supp. 264, 266; <i>Mercu-Ray Industries, Inc. v. Bristol-Myers Co.</i> (S.D.N.Y. 1974) 392 F.Supp. 16, 18 aff'd 2nd Cir. 1974) 508 F.2d 837; <i>Roberts v. State, Dept. of Revenue</i> (Alaska 2007) 162 P.3d 1214, 1220; <i>Yogi Bear Membership Corp. v. Stalnaker</i> (Ind. Ct. App. 1991) 571 N.E.2d 331 333-334.) This Court finds the non-binding decisions to be instructive and elects to follow their guidance to prevent the circumvention of the rule and the public policies which support it.
--	---

		The failure to appear through an attorney is a defect which may be corrected and not an absolute bar to jurisdiction. (<i>CLD, supra</i>, 120 Cal.App.4th 1141, 1149.) Thus, leave to amend is granted.
3	Garcia v. Di Paolo Whetmore, LLC 2026-01553753 Motion to Strike Portions of Complaint	Defendant Maria Di Paolo's Motion to Strike Portions of Complaint is DENIED. Defendant moves to strike Plaintiff's claim for punitive damages at paragraphs 39-44 of the Complaint and prayer for damages. Legal Standard: A plaintiff may seek punitive damages only "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" means "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) "Despicable conduct" is conduct that is "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210.) "[A]conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." (<i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 895-896.) Summary of Complaint: Plaintiff alleges Defendant was the owner of a German Shepherd that attacked Plaintiff while he was walking on a public sidewalk in Huntington Beach, injuring Plaintiff's hand. (Complaint, ¶¶ 5, 12-17.) Plaintiff alleges Defendant's dog had attacked another neighbor and their dog approximately two weeks earlier, yet Defendant failed to adequately train, restrain, neuter, and/or confine the dog. (Id. at ¶¶ 14, 20-26.) Plaintiff alleges claims for strict dog bite liability under Civil Code section 3342, negligence, and punitive damages.